

H/O – OBRA Residents' Rights Summary

Day 12 | GA Healthcare Training & Consulting | Nurse Aide Training Program

Name: _____ Date: _____

What Is OBRA 1987?

The Omnibus Budget Reconciliation Act of 1987 (OBRA) established federal standards for nursing home care, including a comprehensive set of rights for residents. CNAs must know, protect, and uphold these rights every day.

OBRA Residents' Rights Quick Reference

Right Category	What It Means for the CNA
Dignity & Respect	Address residents by preferred name; knock before entering; provide privacy during care.
Privacy & Confidentiality	Do not share resident health information; close curtains; use private spaces for conversations.
Personal Choices	Honor resident preferences in daily routines, clothing, meals, and activities when safe.
Freedom from Restraints	Never apply physical or chemical restraints without a physician's order and documented medical necessity.
Freedom from Abuse	Recognize and report all forms of abuse, neglect, exploitation, and mistreatment immediately.
Communication	Ensure residents can send/receive mail, make phone calls, and visit with family without interference.
Participation in Care	Involve the resident in their care plan; explain procedures before performing them.
Right to Complain	Support residents who raise grievances; never retaliate or discourage complaints.
Financial Security	Never handle resident money without authorization; report missing property immediately.
Access to Ombudsman	Inform residents of their right to contact the LTC Ombudsman without fear of reprisal.

The Role of the Long-Term Care Ombudsman

- An independent advocate for nursing home and assisted living residents.
- Investigates complaints made by or on behalf of residents.
- Can be contacted confidentially — without facility involvement if the resident chooses.
- CNAs must never discourage or obstruct a resident's access to the ombudsman.
- Georgia LTC Ombudsman Program: 1-888-454-5826

Reporting Rights Violations

- Report any suspected violation to the charge nurse immediately.
- Document what you observed — facts only, no opinions.
- Mandatory reporters are required by law — failure to report is a violation.
- Retaliation against a reporting CNA is prohibited.

Knowledge Check

1. List 4 rights protected under OBRA 1987:

2. What is the CNA's responsibility if a resident's rights are violated?

3. Can a CNA apply a restraint to prevent a fall without a physician's order?
